

Haneef v. State of U.P. — outstanding-dues notice relegated to para 6.5

High Court of Judicature at Allahabad · Division Bench · 22 October 2013 · Writ-C No. 57826 of 2013 · **Writ disposed; petitioner relegated to a para 6.5 complaint before the Executive Engineer.**

HEADNOTE

A consumer who disputes the correctness of an electricity bill and seeks to quash an Executive Engineer's notice of outstanding dues must pursue the complaint remedy under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, before the Executive Engineer. The High Court will not examine the bill on a writ petition when that remedy is available.

FACTUAL SUMMARY

The petitioner, Haneef, filed a writ petition to quash a notice dated 20 July 2013 issued by the Executive Engineer, Electricity Department, demanding outstanding dues of Rs.28,381. He disputed the correctness of the bill in the High Court. Counsel for the petitioner and Sri Mahboob Ahmad for the electricity respondent were heard. The Division Bench did not examine the bill and disposed of the petition after pointing the petitioner to a complaint before the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Where a consumer seeks to quash an Executive Engineer's notice of outstanding electricity dues by disputing the correctness of the bill, the High Court will not decide the bill on a writ petition. The available remedy is a complaint under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, before the Executive Engineer; if such a complaint is filed, it shall be considered, decided, and the decision communicated to the consumer. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL AND OF THE NOTICE DATED 20.7.2013 FOR OUTSTANDING DUES OF RS.28,381

Writ disposed without examining the bill; petitioner left to a para 6.5 complaint. ¶ 1